

Awadhesh Pratap Singh v. State of U.P.

Allahabad High Court · Division Bench · 10 February 2020 · Writ-C No. 4673 of 2020 · Writ-C No. 4673 of 2020 · **Clause 6.14 instalments directed; recovery stayed one month**

HEADNOTE

Where a recovery citation has issued for default in electricity dues, a consumer ready to pay the entire amount in instalments under Clause 6.14 of the U.P. Electricity Supply Code, 2005 is to be given that facility by the Executive Engineer within one month; coercive action on the citation is stayed for that period.

FACTUAL SUMMARY

Awadhesh Pratap Singh approached the Allahabad High Court after a recovery citation dated 30 November 2019 was issued for default in electricity dues. After the citation he deposited Rs 2.50 lakh with the office of respondent no. 4. At the hearing he stated he was ready to pay the entire outstanding in instalments under Clause 6.14 of the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and the respondents were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility after recovery citation

HOLDING

Where a recovery citation has been issued for default in electricity dues and the consumer is ready to pay the entire amount in instalments under Clause 6.14 of the U.P. Electricity Supply Code, 2005, the Executive Engineer is to grant that facility and pass the instalment order within one month of presentation of a certified copy; coercive action on the citation is stayed for that period. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

The Court directed that Clause 6.14 instalment facility be given if the petitioner was ready to deposit the entire electricity dues in instalments fixed by the Executive Engineer, staying coercive recovery for one month. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILLED DUES AND VALIDITY OF THE RECOVERY CITATION

The Court did not adjudicate the quantum of dues or the legality of the citation dated 30.11.2019; it directed Clause 6.14 instalments if the petitioner was ready to deposit the entire amount. ¶ 1